ROSINA MUSEKA
versus
MASTER OF THE HIGH COURT
and
LUCIA ELIJAH CHITAURO
and
OLIVER MASOMERA (In his capacity as Executor … for Stephen L. Museka)

HIGH COURT OF ZIMBABWE
ZHOU & CHIKOWERO JJ
HARARE, 24 July & 5 January 2026

Civil Appeal

T Muhlwa, for the appellant
S Muzondiwa, for the 2nd respondent

ZHOU J: This is an appeal challenging the determination of the first respondent, the Master of the High Court to the effect that the second respondent herein contracted an unregistered customary law union with the now deceased Stephen Museka. The appeal is opposed by the second respondent.

The appellant was in an unregistered customary law relationship with the deceased Stephen Museka. The relationship was solemnized into a marriage under the civil law in 2006 but nothing turns on that. It is common ground that in 2003 the deceased contracted the now disputed relationship with the second respondent. Following the death of the husband, the first respondent was called upon to determine whether the deceased and the second respondent contracted an unregistered customary law union in 2003. The determination was for the purposes of informing whether the second respondent qualifies as a surviving spouse for the administration of the deceased's estate in terms of the Administration of Estates Act [*Chapter 6:01*]. After hearing the evidence and submissions of the parties, the first respondent concluded that the deceased contracted an unregistered customary law union with the deceased and was

therefore a surviving spouse for the purposes of the administration of the deceased's estate. This is the conclusion that the appellant challenges.

The appellant has advanced two grounds of appeal in seeking to overturn the determination of the first respondent. The first ground is that the manner in which the union was transacted was not in accordance with the recognized customary marriage practices. The second ground is that the Court a quo disregarded "the glaring acts of dishonesty on the part of the deceased" which should have caused the court to disregard the existence of the disputed unregistered customary union.

In respect of the first ground of appeal, the appellant submitted that the use by the deceased of a go-between chosen by himself rather than by his relatives was not in accordance with custom. It is also argued that the fact that the deceased was not accompanied by any of his brothers when he went to pay lobola was contrary to custom. In contending that there was no compliance with the alleged customs, the appellant placed reliance on the statements of the deceased's brother Stanley Museka who said that he did not know about the unregistered customary union between the deceased and the second respondent. The statements of Stanley Museka on what would be the required customary practices are of no consequence. This is because he is not an expert on customary law and was not presented as one. He seems to have been pontificating his personal understanding on what should have been done. No legal authority was cited to support the assertion that the person who is intending to marry customarily could not appoint his go-between. Equally there is no authority that says that one must be accompanied by his brother when going to pay lobola. The ground of appeal is therefore not legally sound.

As for the second ground of appeal, the alleged dishonesty relied upon is the failure by the deceased to inform some of his relatives of the existence of his customary law union. At best, that information even if it had been passed *ex post facto,* could not have a bearing on the validity of a union that had already been contracted. More significantly, there is no legal entitlement given to all the relatives of the man to be informed of the unregistered customary law union. The ground of appeal is therefore without mer.

This court observed for itself the video recording of the lobola proceedings which gave birth to the unregistered customary law union. The video footage shows the relatives of the second respondent present and participating in the deliberations. The deceased also had his own

representatives. The latter included the deceased's friend, Ephraim Mbaimbai who was the gobetween, and one Enock Nhando.

In all the circumstances, the appeal is without merit. The two grounds of appeal are not based on the law even though they purport to raise legal arguments. The law does not support the grounds of appeal.

In the result, IT IS ORDERED THAT:

1. The appeal be and is dismissed.
2. Appellant shall pay costs.

ZHOU J: ……

CHIKOWERO J: Agrees……

Chimwamurombe Legal Practice, appellant's legal practitioners.
Samukange Hungwe Attorneys, second respondent's legal practitioners.